



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

APR 26 1991

DOT-E 10565
(FIRST REVISION)

1. Olin Corporation, Stamford, Connecticut, is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer a package prescribed herein of a corrosive material for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the one-time shipment of a tank car tank, containing a residue of sulfuric acid, with a missing manway nozzle cover plate and safety relief device and provides no relief from any regulation other than as specifically stated.
2. BASIS. This emergency exemption is based on Olin Corporation application of March 15, 1991, and April 23, 1991, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary for protection of life.
3. HAZARDOUS MATERIALS (Description and class). Sulfuric acid, classed as a corrosive material.
4. PROPER SHIPPING NAME (49 CFR 172.101). Sulfuric acid.
5. REGULATION AFFECTED. 49 CFR 173.29(c).
6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.
7. SAFETY CONTROL MEASURES.
 - (a) Packaging prescribed is a DOT Specification 111A100W2 tank car tank meeting all DOT requirements (49 CFR Parts 100-299), except that the manway nozzle cover plate and safety relief device are missing.
 - (b) To prevent unauthorized entry and to prevent any unintentional release of product, a temporary manway cover must be applied to the dome area by use of straps, bolts, or other means.
8. SPECIAL PROVISIONS.
 - a. Tank car must be marked "DOT-E 10565" in four inch letters on a contrasting background above the DOT specification number.

b. Shipment of the tank car tank must be made between Channelview, Texas and Deerpark, Texas via the Missouri Pacific Railroad a total distance of approximately 7 miles.

c. The Federal Railroad Administration (FRA) is to be notified if any unusual incident, such as a derailment or exterior tank damage, occurs during the movement by contacting the:

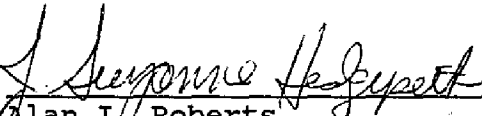
Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

d. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. REPORTING REQUIREMENTS: Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. June 30, 1991.

Issued at Washington, D.C.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

APR 26 1991

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FRA.